

**Policy for development of Pumped
Storage Projects (PSPs), PSPs cum LIS
and co-located PSP-Solar/Other
Renewable Energy Hybrid Projects
through Public Private Partnership**

**Government of Maharashtra
Water Resources Department
Corrigendum No. Misc.2021/CR82/2021/HP
Mantralaya, Mumbai 400032
Date: 09 .09.2026**

- Read:**
1. Government Resolution no: Misc.2021/CR82/2021/HP,
dt. 20.12.2023
 2. GoMWRD, Corrigendum No. Misc.2021/CR82/2021/HP,
dt. 31.07.2024

Corrigendum No. 2

Government of Maharashtra, WRD has issued comprehensive Policy dt. 20.12.2023 vide ref. (1) above for development of PSPs through Public Private Partnership (PPP) & subsequent corrigendum to this policy vide ref. (2) regarding signing of MoU by developer with GoMWRD.

In order to bring more clarity regarding clauses especially related to “Right of First Refusal”, the following corrigendum is issued to the Government Resolution No MISC 2021/ CR82/2021/HP, dt. 20.12.2023.

1) In clause A-I.16 under Part A: Implementation Framework, A-I Implementation of Category- I (a, b & c) PSPs :-

“The “Right of First Refusal” for the purchase of energy generated shall vest with state distribution licensee. Developer has to arrange for the pumping energy. No capital investment will be made or revenue expenditure be incurred on any component of project by GoMWRD/IDC”

Shall read as

“The ‘Right of First Refusal’ for the purchase of energy generated shall vest with state distribution licensee, subject to condition that distribution licensee shall communicate its decision within 90 days from date of communication by the developer. In the event that no decision is communicated within the stipulated period of 90 days, the same shall be deemed to constitute refusal by the Distribution Licensee. Developer has to arrange for the pumping energy. No capital investment

will be made or revenue expenditure be incurred on any component of project by GoMWRD/IDC”

2) In clause A-II.13 under Part A: Implementation Framework, A-II Implementation of Category- II PSPs:-

“The “Right of First Refusal” for the purchase of energy generated shall vest with state distribution licensee. Developer has to arrange for the pumping energy. No capital investment will be made or revenue expenditure be incurred on any component of project by GoMWRD/IDC”

Shall read as

“The ‘Right of First Refusal’ for the purchase of energy generated shall vest with state distribution licensee, subject to condition that distribution licensee shall communicate its decision within 90 days from date of communication by the developer. In the event that no decision is communicated within the stipulated period of 90 days, the same shall be deemed to constitute refusal by the Distribution Licensee. Developer has to arrange for the pumping energy. No capital investment will be made or revenue expenditure be incurred on any component of project by GoMWRD/IDC”

3) In clause D-II Sale of Energy under PART-D: Generation, sale of Energy & Regulatory Provisions :-

“Energy storage capacity of PSP can be integrated with any solar and/or wind projects situated in any part of India including the state of Maharashtra, for delivering firm Renewable Energy (RE). The distribution licensee(s) in the State are not obligated to purchase the power from the PSP. Similarly, they are not obligated to supply pumping energy to the PSP. However, distribution licensee(s) shall have "First Right of Refusal" for all the benefits of the PSP. However, distribution licensee shall communicate its decision within 30 days from date of communication by the developer. The tariff for sale of power and ancillary services provided by the PSP to the distribution licensee shall be governed by the applicable regulations of the Appropriate Commission.”

Shall read as

“Energy storage capacity of PSP can be integrated with any solar and/or wind projects situated in any part of India including the state of Maharashtra, for delivering Firm and Dispatchable Renewable Energy (FDRE) or any such arrangement. The distribution licensee(s) in the State are not obligated to purchase the power from the PSP. Similarly, they are not obligated to supply pumping energy to the PSP. Distribution licensee(s) shall have "First Right of Refusal" for all the benefits of the PSP. However, distribution licensee shall communicate its decision within 90 days from date of communication by the developer. In the event that no decision is communicated within the stipulated period of 90 days, the same shall be deemed to constitute refusal by the Distribution Licensee. The tariff for sale of power and ancillary

services provided by the PSP to the distribution licensee shall be governed by the applicable regulations of the Appropriate Commission.”

4) In clause E-II.2 under PART-E: Co-located PSP- Solar and Other RE Hybrid Projects :-

“On scrutiny of such proposal and subject to availability of additional land, the proposal will be approved and the separate Letter of Permission (LoP) shall be issued by the CE (Electrical), Hydro Projects, Mumbai with prior approval of the GoMWRD/IDC. For other Renewable Energy (RE) set up the permission shall be obtained from concerned competitive authority.”

Shall read as

“On scrutiny of such proposal and subject to availability of additional land, the proposal will be approved and the separate Letter of Permission (LoP) shall be issued by the CE (Electrical), Hydro Projects, Mumbai with prior approval of the GoMWRD/IDC. For other Renewable Energy (RE) set up the permission shall be obtained from concerned **competent** authority.”

This Corrigendum is available on the official website of Government of Maharashtra www.maharashtra.gov.in. and its computer code is 202609091608409227. This Corrigendum is digitally signed.

By order and in the name of the Governor of Maharashtra,

**PRAKASH
BALKRUSHNA MISAL**

Digitally signed by PRAKASH BALKRUSHNA MISAL
DN: cn=IN, o=Personal, postalCode=411016, l=Pune, st=Maharashtra,
street=OFF SENAPATI BAPAT ROAD, Pune, Maharashtra India 411016
C=IN, o=Personal, postalCode=411016, l=Pune, st=Maharashtra,
street=OFF SENAPATI BAPAT ROAD, Pune, Maharashtra India 411016
2.5.4.20=5d509217122f062dc0783ba5924445be38046f3473abdf40ef
790485b9591e,
serialNumber=244a1f8434f34514178081abc430161cc61a193ba94418
08808fc627326dc0c3, email=prakashmisa001@gmail.com,
cn=PRAKASH BALKRUSHNA MISAL
Date: 2026.09.09 16:11:08 +05'30'

**(Prakash Misal)
Secretary (CAD)
WRD, Mantralaya, Mumbai.**

Copy to :

1. The Secretary to Hon. Governor, Maharashtra State, Mantralaya, Mumbai
2. The Additional Chief Secretary to Hon. Chief Minister, Maharashtra State, Mantralaya, Mumbai
3. The Additional Chief Secretary to Hon. Deputy Chief Minister (Urban Development, Housing & PWD(P.E.)), Maharashtra State, Mantralaya, Mumbai
4. The Secretary to Hon. Deputy Chief Minister (State Excise, Sports & Youth Welfare, Minority Development & Aukaf), Maharashtra State, Mantralaya, Mumbai
5. The Leader of Opposition,(Legislative Assembly/ Council), Maharashtra State, Vidhan Bhavan, Mumbai
6. All members of Legislative Assembly & Council , Maharashtra State, Vidhan Bhavan, Mumbai
7. The Private Secretary to Hon. All Ministers,Maharashtra State,Mantralaya, Mumbai
8. The Private Secretary to Hon. All State Ministers, Maharashtra State, Mantralaya, Mumbai
9. The Chief Secretary, Maharashtra State, Mantralaya, Mumbai

10. The Additional Chief Secretary (Finance), Finance Department, Mantralaya, Mumbai.
11. The Additional Chief Secretary (Energy), I.E. & L. Department, Mantralaya, Mumbai.
12. The Principal Secretary, Water Resources Department, Mantralaya, Mumbai.
13. The Principal Secretary (Planning), Planning Department, Mantralaya, Mumbai
14. The Principal Secretary (Industries), I.E.& L.Department, Mantralaya, Mumbai.
15. The Principal Secretary (RLA), Law & Judiciary Department, Mantralaya, Mumbai
16. The Secretary (CAD),Water Resources Department, Mantralaya, Mumbai.
17. The Secretary (PC), Water Resources Department, Mantralaya, Mumbai.
18. The Chairman, Maharashtra Electricity Regulatory Commission, Mumbai
19. The Managing Director, MSEB Holding Company Ltd. , Prakashghad, Mumbai
20. The Managing Director, MSTCL, Prakashghad, Bandra, Mumbai.
21. The Managing Director, MSEDCL Prakashghad, Mumbai .
22. The Managing Director, MSPGCL, Prakashghad, Mumbai
23. Executive Directors and Chief Engineers of all Irrigation Development Corporations
24. All CE & Joint Secretaries, Water Resources Department, Mantralaya, Mumbai
25. Chief Engineer (Electrical), Hydro Projects, Mumbai
26. All Regional Chief Engineers /Superintending Engineers of Water Resources Department.
27. Directorate General of Information & Public Relations, Maharashtra State, Mantralaya,
Mumbai (2 copies)
28. HP Desk (for collection).